

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

31

**Litigation Risk Analysis (sent with May 10 demand
letter)**

Legal Element Supported:

Pre-suit good-faith notice of legal exposure

Verified Complaint Reference:

¶ 6

[SOURCE DOCUMENT TO BE SUPPLIED BY PLAINTIFF BEFORE FILING]

LITIGATION RISK ANALYSIS

Why This Case Resolves at Settlement — or at Summary Judgment

To:	Allison Weinstein, Co-President and CEO, Weinstein Properties; Lyle Benaicha, In-House Counsel; Amy Brochstein, Philadelphia Insurance Companies (amy.e.brochstein@phly.com); Glynis Zavarelli and Michelle Sortor, Wentz & Zavarelli LLP
From:	Kathryn M. Copeland, TX Bar No. 24086056
Date:	May 11, 2026
Re:	FHA § 3617 / ADA § 12203(b) Interference — Pre-Filing Risk Summary and Settlement Proposal
Deadline:	9:00 a.m. Central Time, Tuesday, May 12, 2026

The bottom line: Every critical element of an FHA § 3617 / ADA § 12203(b) interference case is proved by Weinstein's own court filings. There is no factual dispute. The evidence of bad faith is the filing itself. A federal judge reviewing this record on a TRO motion will see a closed causal loop with no viable defense — not a close call.

I. Three Closed Causal Loops — Fully Documented by Weinstein's Own Filings

A "closed causal loop" means every step is in writing: the interference act, the protected activity it targeted, and the documented harm. No inference is required. The court reads Weinstein's own filings and sees the pattern.

Date / act	Protected activity targeted	Documented outcome	Why no defense exists
Jan. 5, 2026 Motion to Strike (141st Dist. Ct.)	Dec. 29 ADA accommodation motion; Dr. Huang's physician evidence of functional limitations	Motion succeeded. Physician evidence excluded. Accommodation denied without medical support. Dr. Huang documents acute worsening Feb. 25, 2026 (intracranial hypotension, fall with head injury).	Weinstein's own Jan. 5 filing acknowledges receipt of physician letters (it moves to exclude them). The May 6 amicus then claims 'no documentation.' The documentation 'absent' was excluded by Weinstein's own motion. Bad faith is proved by Weinstein's own paper trail.
Oct. 27, 2025 Housing cutoff (Housing)	June–August 2025 FHA/ADA accommodation requests; Brochstein's written commitment to housing tied to remediation completion	Effectively homeless. Contents unretrievable — Sept. 8 Dallas Mold Consultants inspection: 'no equipment on site, all contents considered contaminated.' Remediation was not complete at cutoff.	Brochstein (insurer) confirmed housing in writing tied to remediation completion. Sept. 8 inspection proves remediation was not complete on Oct. 27. The cutoff cannot be defended as 'lease expiration' when the written promise expressly overrides that.
May 6–8, 2026 Nonparty amicus + blocked response (Decker → 141st / 233rd)	ADA accommodation requests pending before Judge Newell; right to correct a false factual narrative about disability documentation	Disability-discrediting amicus brief before Judge Newell. Copeland's May 8 response rejected: 'Rejected — Vexatious Litigant.' May 15 deadline is imminent. False narrative stands unanswered.	Weinstein filed as a nonparty where response would normally be available, then the VL restriction blocked response. Weinstein filed where a response was blocked. This is the pincer — two mechanisms working together to ensure the false narrative cannot be corrected before the court ruling.

II. Elements and Proof — No Gaps

Both FHA § 3617 and ADA § 12203(b) require four elements. Every element is documented by multiple independent sources.

Element	What it requires	Document proving it	Can Weinstein dispute it?
Protected activity	Plaintiff engaged in activity protected by FHA or ADA (accommodation requests, opposing discriminatory practices, exercising housing rights)	June 27, Aug. 14–15, Aug. 18, Dec. 29 accommodation requests; March 4 emergency ADA motion; multiple court filings asserting disability rights	No — activity is in writing, formally served on Weinstein's counsel
Actual notice	Defendant knew of plaintiff's protected activity at the time of the interference	Jan. 5 motion acknowledges Dr. Huang letters; Jan. 8 notice to Benaicha/Brochstein names § 12203(b) by statute; multiple court filings served on counsel	No — Jan. 8 email to in-house counsel proves corporate-level notice
Interference	Defendant coerced, intimidated, threatened, or interfered with plaintiff in connection with protected activity	Jan. 5 motion to strike; Oct. 27 housing cutoff; May 6 nonparty amicus; May 8 filing rejection; sanctions motions after disability barriers raised	No — all acts are in the court record
Causal connection	A causal link between the protected activity and the adverse action	Nonrenewal 8 days after Aug. 18 demand; Jan. 5 motion filed 7 days after Dec. 29 ADA motion; May 6 amicus filed in direct response to accommodation requests in multiple proceedings	No — temporal proximity is tight; Jan. 5 filing admits it targets the accommodation motion
Corporate ratification	(For punitive damages): corporate principals knew of and ratified the conduct	Jan. 8 notice to Benaicha (in-house counsel) + Brochstein (insurer); Jan. 13 response filed motion to transfer — not correction of conduct	No — corporate principals received written notice and escalated rather than correcting

III. Why Each Defense Fails

Weinstein's defense	The argument	Why it fails — specific fact
Litigation privilege / Noerr-Pennington	Filing court documents is protected petitioning activity immune from liability	Sham exception: The Jan. 5 motion was filed with knowledge that the documentation it characterized as absent existed — Weinstein's counsel had the letters and moved to exclude them. Fraud exception: Sortor represented to a court that contents cleaning was 'not regulated' under TMARR after receiving Copeland's Dec. 2, 2025 email attaching TDLR authority establishing it is regulated. TDRPC 3.03.
No disability / no documentation	Plaintiff has not established disability; documentation is insufficient	The SSA Fully Favorable Decision (April 10, 2026, onset June 8, 2023) is a federal agency adjudication under 42 U.S.C. § 423. A state party cannot relitigate federal disability status. More importantly: this defense is itself the interference act — attacking disability status to defeat accommodation requests is textbook § 12203(b).

Reasonable accommodation was offered	Hotel stays provided during remediation satisfied any accommodation obligation	Zavarelli's Sept. 19, 2025 call confirms she knew the Holiday Inn was inaccessible given Copeland's documented balance and cognitive impairments ('I have not seen that, but I will look for it'). Brochstein's written commitment tied housing to remediation completion. Cutting off housing before remediation was complete is not reasonable accommodation — it is its termination.
Copeland obstructed remediation	Plaintiff's conduct caused remediation delays, justifying Weinstein's response	Zavarelli's own Sept. 19, 2025 call: 'I'm not aware of TDLR stopping our remediation work.' ServPro withdrew after receiving Copeland's DTPA demand and consulting its own attorney — a legal decision by a third party, not obstruction by Copeland. Weinstein's litigation counsel concedes no obstruction on the call record.
Ordinary litigation disagreement	Everything Weinstein did was within the normal bounds of litigation defense	Filing as a nonparty in a case where you have no standing to file (Decker) is not normal litigation defense. Filing to exclude physician evidence, then claiming the evidence doesn't exist, is not a disagreement — it is manufactured absence. The Jan. 8 notice gave corporate-level opportunity to correct; escalation rather than correction shows deliberate choice.

IV. What a Federal Judge Sees at the TRO Hearing

Factor	Analysis
Likelihood of success on merits	The closed causal loops mean no factual dispute — the acts are in Weinstein's own filings. No credibility determination is required. The court reads the Jan. 5 motion (acknowledges physician letters), the Jan. 8 notice (corporate-level warning), and the May 6 amicus (claims no documentation). Likelihood of success is high as a matter of law, not inference.
Irreparable harm	Three independent irreparable harms: (1) May 15 deadline — if the false documentation narrative stands unanswered before Judge Newell, it becomes part of the permanent record and prejudices every pending proceeding. Money damages cannot undo a court ruling made on a false factual premise. (2) Ongoing housing instability and documented neurological deterioration — Dr. Huang's Feb. 25 letter directly connects worsening to denied accommodation. (3) The harm is happening in real time.
Balance of equities	Weinstein is asked to: (a) not file more disability-discrediting nonparty briefs; (b) correct a false statement it already made; (c) fund housing it already promised in writing. The burden on Weinstein is administrative. Copeland faces ongoing homelessness, worsening neurological injury documented by UT Southwestern, and an unanswered false narrative before multiple courts. The balance is not close.
Public interest	Congress enacted FHA § 3617 and ADA § 12203(b) specifically to prevent landlords from using litigation tactics to defeat disability accommodation rights. Federal courts have a strong institutional interest in enforcing these statutes. The 5th Circuit acknowledged in <i>Strife v. Aldine ISD</i> , No. 24-20269 (5th Cir. May 16, 2025) that the § 12203(b) interference standard is unsettled — this case is well-positioned to establish favorable circuit precedent.

V. What Sophisticated Defendants Do When They Cannot Defend — And Why Settlement Now Is the Right Call

When institutional defendants receive a demand with this evidentiary profile — closed causal loops, corporate-level ratification documented in writing, a federal agency adjudication that forecloses the central defense — experienced risk counsel follow a predictable sequence:

- Escalate to senior risk management and pull coverage counsel separately from defense counsel — because if conduct is found intentional, coverage exclusions may leave the company personally exposed without insurance backing.
- Commission a frank expected-value analysis: probability of loss at trial × expected damages (actual + punitive) + defense costs + reputational exposure. Compare that number to the cost of settlement now.
- Assess pattern-or-practice risk — whether a federal complaint, once filed, opens discovery that could reveal similar conduct toward other disabled tenants, converting an individual case into a class.
- Evaluate reputational exposure — a federal civil rights complaint is public record. The facts in this demand, if filed, are available to press, HUD, DOJ, and housing advocates.
- Look for a structure that settles the immediate risk without a full admission — phased housing stabilization, record correction, and a standstill can be approved quickly by a risk committee without requiring admission of liability.

The plaintiff's leverage in this situation comes from three sources:

- Timing — the May 15 deadline means the irreparable harm is not speculative. It is imminent. A TRO motion filed this week would be heard before the damage is done.
- The coverage question — if Weinstein's insurer concludes the May 6 amicus and Jan. 5 motion constitute intentional interference with federal rights, the policy's intentional-act exclusion may apply. That means the company, not the insurer, bears the exposure. Weinstein and its insurer now have different interests. Settling now, before that analysis is complete, keeps the company and insurer aligned.
- Discovery — a federal complaint triggers depositions of Allison Weinstein, Lyle Benaicha, Glynis Zavarelli, Michelle Sortor, and Amy Brochstein. Every internal communication about accommodation strategy, the Jan. 5 motion, the May 6 amicus, and the housing cutoff decision becomes discoverable. The deposition threat alone is a powerful settlement incentive for institutional defendants.

The settlement structure proposed in the accompanying demand is designed to be approvable quickly at the risk-committee level without requiring admission of liability: immediate 90-day bridge housing (replaces a promise already made in writing), correction of one specific false statement, a standstill on further disability-discrediting filings, and attorney's fees for the federal interference claim. This is not a demand designed to maximize a number. It is designed to stop the harm.

Every week of delay converts a correctable interference into a permanent record. The cost of correction is lowest today.

Nothing in this memorandum waives any rights, claims, objections, remedies, privileges, or appellate arguments. All rights are expressly reserved.

Kathryn M. Copeland
State Bar No. 24086056
Tel: (817) 789-8498
Email: katie@katiecopeland.com

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